

[20 & 21 GEO. 5.] *East Lothian* [Ch. cxxxiii.]
Western District Water Order Confirmation Act, 1930.



CHAPTER cxxxiii.

An Act to confirm a Provisional Order under A.D. 1930.
the Private Legislation Procedure (Scotland)
Act 1899 relating to East Lothian Western
District Water. [1st August 1930.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by
one of His Majesty's Principal Secretaries of State under
the provisions of the Private Legislation Procedure
(Scotland) Act 1899 as read with the Secretaries of
State Act 1926 and it is requisite that the said Order
should be confirmed by Parliament:

62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows:—

1. The Provisional Order contained in the schedule
hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the East Lothian
Western District Water Order Confirmation Act 1930.

Short title.

A.D. 1930.

SCHEDULE.

EAST LOTHIAN WESTERN DISTRICT WATER.

Provisional Order to authorise the East Lothian Western District Water Board to borrow further moneys and for other purposes.

WHEREAS the East Lothian Western District Water Board (hereinafter referred to as "the Board") were incorporated by the East Lothian (Western District) Water Order 1922 (hereinafter referred to as "the Order of 1922") and were by that Order authorised to construct waterworks for the supply of the county of East Lothian including a reservoir upon the Hopes Water and the Board were authorised to borrow money for the purpose of constructing the said reservoir and other works :

And whereas the cost of the construction of the reservoir and works authorised by the Order of 1922 was estimated upon the footing of the prices ruling at the time when the work would be executed :

And whereas the Board were granted a period of twenty years within which they were authorised to construct the said reservoir but the cost of labour and materials has not been reduced as anticipated by the Board and the cost of the construction of the works must largely exceed the sums estimated for the construction thereof :

And whereas the Board with a view to providing relief from unemployment are desirous of proceeding with the construction of the Hopes reservoir forthwith :

And whereas the Board have purchased or have agreed to purchase the land necessary for the construction of the reservoir and estimates have been prepared for the execution of the works authorised by the Order of 1922 so far as the same have not been commenced and

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completed and so far as the same are not fully covered A.D. 1930.
 by the estimates recited in the Order of 1922 : —

And whereas such estimates are as follows :—

For the construction of storage reservoirs embank-
 ments and relative works the sum of £160,000
 being as follows :—

	£
Work No. 1 - - - - -	120,900
Work No. 2 - - - - -	23,000
Work No. 3 - - - - -	16,100

And whereas the said works are permanent works
 and it is expedient that the cost thereof should be
 spread over a number of years as provided by the Order
 of 1922 :

And whereas it is expedient that the Board should
 be authorised to borrow further moneys for the purposes
 of the works authorised by the Order of 1922 :

And whereas the purposes aforesaid cannot be effected
 without an Order confirmed by Parliament under the
 provisions of the Private Legislation Procedure (Scotland)
 Act 1899 :

Now therefore in pursuance of the powers contained
 in the last-mentioned Act as read with the Secretaries
 of State Act 1926 the Secretary of State orders as
 follows :—

1.—(1) This Order may be cited for all purposes Short title
 as the East Lothian Western District Water Order and citation.
 1930.

(2) The East Lothian (Western District) Water
 Order 1922 and this Order may be cited together as
 the East Lothian Western District Water Orders 1922
 and 1930.

2. The Board may from time to time borrow at Power to
 interest for the purposes of and under the powers of the borrow.
 Order of 1922 the sum of seventy thousand five hundred
 and eighty pounds in addition to the moneys authorised
 to be borrowed by the Order of 1922.

3. Any money borrowed by the Board under the Repayment
 powers of this Order shall be repaid as though such of borrowed
 money had been borrowed for the purpose (c) mentioned money.

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A.D. 1930. in section 120 (Power to borrow) of the Order of 1922
— and within sixty years of the date or dates of borrowing
the same.

Costs of
Order.

4. The costs charges and expenses of and incident
to the preparing and making of this Order and the
confirmation by Parliament or otherwise in relation
thereto shall be paid by the Board.

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